

If you can't settle issues at the end of your relationship regarding who owns what, you may end up in court. In most states the court will first ask if there's a written contract, and if there isn't, the court will try to determine if there was an oral agreement (difficult to prove). If not, the court will examine your actions to try to determine if there was an implied contract. If there's proof that you've shared expenses and assets equally, for instance, or that you shared a bank account, the court could rule that there's an implied contract and enforce it as such. One of you may end up paying a settlement or support payments to the other, even in the absence of a written or oral agreement.



You should be aware that if one of you is still legally married to someone else, you might not be protected legally regardless of what you do. Some states won't enforce agreements or promises you make to your live-in partner if one of you is still legally married.

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This is a general overview of nonmarital agreements and is not offered as legal advice. Sometimes laws in a particular state will override anything you write in an agreement, so you may think you're protected when in fact you may not be.